

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 22-014
Amendment to Title 10, Section 10-507 of the Chickasaw Nation Code
(Special Exemption Granted)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, a special exemption was granted to Chickasaw Nation citizens who purchase computer products from SmokeSignals Computer Company, and

WHEREAS, SmokeSignals Computer Company is no longer in existence.

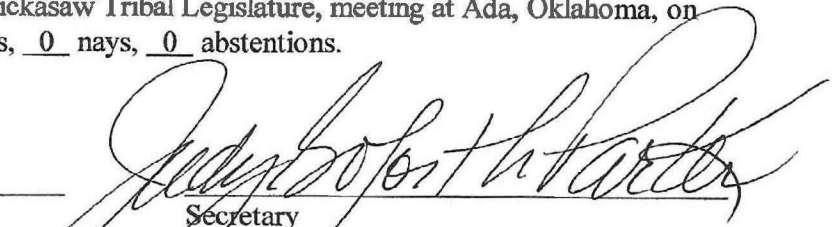
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Title 10 of the Chickasaw Nation Code by deleting Section 10-507 as follows (additions are shown in red, deletions are stricken through):

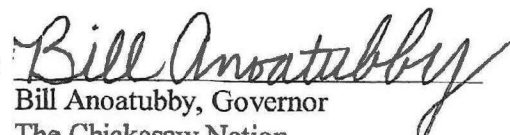
"SECTION 10-507 **RESERVED. SPECIAL EXEMPTION GRANTED:**

~~There is hereby granted an exemption to the full amount of the Chickasaw Nation sales tax on all sales made to citizens of the Chickasaw Nation through the SmokeSignals Computer Company; provided, however, that proof of citizenship shall be required by SmokeSignals Computer Company at the time of any purchase for which sales tax would normally have been collected under this Title. A copy of such proof, provided by the purchaser, shall be retained as part of the records of such sale by the SmokeSignals Computer Company, and a report shall be filed with the Chickasaw Tax Commission on all such sales no later than the 10th day of each month."~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 20, 2004, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 20 2005

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Explanation: This resolution performs general housekeeping by deleting a section of the Chickasaw Nation Code which had granted exemption from the tribal sales tax by any Chickasaw citizen who purchased computers and related equipment from SmokeSignals Computer Company. As the company is no longer in existence, this resolution will remove the exemption.

Requested By: Chickasaw Tax Commission through Governor Bill Anoatubby

Presented By: Steve Woods, Chairman
Legislative Committee